

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3
4 A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING SIGNATURE GATHERERS FOR BALLOT ISSUES
5 TO BE MONTANA RESIDENTS AND REGISTERED MONTANA VOTERS; AMENDING SECTIONS 13-27-233
6 AND 13-27-302, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

7
8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

9
10 **Section 1.** Section 13-27-233, MCA, is amended to read:

11 **"13-27-233. Provision of finalized petition for signature.** (1) When the requirements of 13-27-216,
12 13-27-217, 13-27-218, or 13-27-219 are complete and the proposed statewide ballot issue has been found
13 legally sufficient pursuant to 13-27-226, the secretary of state shall immediately send to the person submitting
14 the proposed statewide ballot issue a sample petition form, including the text of the proposed statewide ballot
15 issue, the statement of purpose and implication, and the yes and no statement, as prepared by the petitioner,
16 reviewed by the legislative services division, and approved by the attorney general and in the form provided by
17 this part.

18 (2) (a) A signature gatherer may circulate the petition only in the form of the sample prepared by
19 the secretary of state.

20 (b) An individual must be a Montana resident and a registered Montana voter in order to work as a
21 signature gatherer.

22 (3) The secretary of state shall immediately provide a copy of the sample petition form to any
23 interested parties who have made a request to be informed of an approved petition."

24
25 **Section 2.** Section 13-27-302, MCA, is amended to read:

26 **"13-27-302. Certification of signatures.** An affidavit, in substantially the following form, must be
27 attached to each sheet or section submitted to the county official:

28 I, (name of person who is the signature gatherer), swear that I am a Montana resident and a registered

1 Montana voter, and that I gathered the signatures on the petition to which this affidavit is attached on the stated
2 dates, that I believe the signatures on the petition are genuine, are the signatures of the persons whose names
3 they purport to be, and are the signatures of Montana electors who are registered at the address or have the
4 telephone number following the person's signature, and that the signers knew the contents of the petition before
5 signing the petition. _____ (Date on which the first signature was
6 gathered) _____ (Signature of petition signature
7 gatherer) _____ (Address of petition signature gatherer)

8 Subscribed and sworn to before me this ____ day of _____, 20__

9 Seal _____ (Person authorized to take

10 oaths) _____ (Title or notarial information)"

11

12 NEW SECTION. **Section 3. Effective date.** [This act] is effective on passage and approval.

13 - END -